67:42:10:07. Staff-child ratio. A program must maintain the following ratio for staff and children present:

(1) For children up to three years of age, one staff person to every five children, or fraction thereof;

(2) For children three to six years of age, one staff person to every 10 children, or fraction thereof; and

(3) For children six years of age or older, one staff person to every 15 children, or fraction thereof.

The staff-child ratio of mixed-age groups must meet the requirements of the age grouping that comprises the majority of the children except when children under three years of age are present. When three or more children under the age of three years are present in the mixed-age group, the staff-child ratio for children under three years of age must be maintained.

There may be no more than 20 children in an activity grouping.

There must be a list of adults who would be available within 15 minutes of the facility in case of an emergency. This list must be posted next to the center's telephone and must include the adults' telephone numbers. Children of staff members who are also in care or are supervised at the facility must be included in determining group size and the staff-child ratio.

Source: SL 1975, ch 16, § 1; transferred from § 67:14:19:20, 4 SDR 10, effective August 28, 1977; transferred from § 67:41:04:11, 7 SDR 66, 7 SDR 89, effective July 1, 1981; 12 SDR 209, effective July 6, 1986; 21 SDR 206, effective June 4, 1995; 31 SDR 40, effective September 29, 2004; 39 SDR 220, effective June 27, 2013.

General Authority: SDCL 26-6-16.

Law Implemented: SDCL 26-6-16.

Cross-Reference: Additional number of children in day care -- Staff-to-child ratios, SDCL 26-6-15.1.

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